IP-SAKTI Regulatory Diagnostic Report

USER: What are the international patent requirements for a herbal drug?

ASSISTANT: ## ### ?? National Framework (India ? IPO & NBA) **Assessment:** Under Indian law, the patentability of a herbal drug depends on whether it meets the criteria set out in the Patents Act, 1970 and the Biological Diversity Act, 2002 (as amended in 2023). A herbal drug formulation may be patentable if it constitutes a "Classical Drug" (strictly defined in the First Schedule of the Drugs & Cosmetics Act, 1940) or falls under "Patent & Proprietary (P&P) Medicines" requiring a novel ratio/recipe. However, under Section 3(p) of the Patents Act, 1970, inventions which in effect are traditional knowledge are non-patentable. Additionally, Section 3(e) prohibits mere admixtures that result only in aggregation of properties without proven synergy. The Biological Diversity Act, 2002, mandates prior approval from the National Biodiversity Authority (NBA) via Form-III for any foreign IPR filing involving genetic resources or traditional knowledge.

Citation:

- Patents Act, 1970 ? Sections 3(p), 3(e), and 10(4)(d) (mandatory disclosure of source and geographical origin of biological material)

- Biological Diversity Act, 2002 ? Section 7 Proviso (as amended in 2023) granting exemption to registered AYUSH practitioners for livelihood purposes

- Drugs & Cosmetics Act, 1940 ? First Schedule (Classical Drugs including Charaka Samhita-based formulations) **Recommended Action:** Before filing a patent for a herbal drug, conduct a traditional knowledge (TK) search to ensure the invention is not merely an aggregation of known TK without proven synergy (Section 3(e)). If the formulation involves genetic resources or TK, obtain mandatory prior approval

from the NBA via Form-III before proceeding with international filings. Ensure all biological material used originates from a documented source with proper attribution as required by Section 10(4)(d) of the Patents Act.

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Additionally, the Nagoya Protocol requires Prior Informed Consent (PIC) and Mutually Agreed Terms (MAT) for access to genetic resources and associated traditional knowledge. These obligations complement the WIPO GRATK Treaty by ensuring that benefit-sharing arrangements are made before patenting inventions based on such resources.

Citation:

- WIPO GRATK Treaty (2024), Article 3 ? Disclosure Requirement for genetic resources and traditional knowledge

- Nagoya Protocol ? Articles on Prior Informed Consent (PIC) and Mutually Agreed Terms (MAT) **Recommended Action:** When filing a patent for a herbal drug globally, prepare a detailed disclosure document that includes the country of origin/source of all genetic resources used, identification of Indigenous Peoples/local communities providing traditional knowledge, and evidence of PIC/MAT where applicable. Align

the patent application strategy with both the WIPO GRATK Treaty and Nagoya Protocol to avoid substantiation challenges during examination in multiple jurisdictions.

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Key Difference ? Novelty/Synergy Test: Indian patent law applies strict tests under Section 3(e) against mere aggregations of known TK without proven synergy, while the WIPO GRATK Treaty focuses on preventing erroneous patents for inventions lacking novelty or inventiveness *with respect to* genetic resources and TK. Both systems aim to protect genetic resources and TK, but they differ in timing (pre-filing vs. application-stage disclosure) and the nature of the disclosure required (country of origin vs. source identification).

Key Difference ? Benefit-Sharing Integration: The Nagoya Protocol integrates benefit-sharing mechanisms into its PIC/MAT framework, which can influence patent licensing strategies. India's BDA provisions offer exemptions for registered AYUSH practitioners for livelihood purposes, creating a domestic pathway that differs from the international treaty's emphasis on equitable benefit distribution across borders.

Strategic Recommendation: For a herbal drug seeking international patent protection, file under the PCT route with early engagement to secure NBA Form-III approval (Section 7 Proviso, BDA 2002 as amended in 2023) and simultaneously prepare the required TK disclosure documentation aligned with WIPO GRATK Article 3 and Nagoya Protocol PIC/MAT requirements. This dual-compliance approach ensures both

domestic and international patentability while respecting the rights of indigenous communities and genetic resource providers.